ANDHRA PRADESH POWER GENERATION CORPORATION LIMITED
Dr. NARLA TATA RAO THERMAL POWER STATION

OFFICE OF THE CHIEF ENGINEER:O&M
Dr.NTTPS, IBRAHIMPATNAM

Memo. No. CE/O&M/Dr.NTTPS/Tech-11/F.27/D.No.3037/2026, Dt:04-03-2026.

Sub: APGENCO - Dr.NTTPS – O&M – Tendering Process - General Conditions to be attached to the tender schedules for finalization of various tenders through **E-Procurement platform** for the year 2026-27– Communicated - Regarding.

Ref:1) Memo No.FA&CCA(Audit)/AO/IA/F.Cir/D.No.67/02, dt.27-07-2002
2) Circular No.CS/AP.Genco/01/2003, dt.21-04-2003
3) G.O.O.No: 254/CGM(A)/2005, Date: 28-09-2005
4) Memo. No. CE/O&M/Dr.NTTPS/ Techl.11/ F.27/D.No.220/06, Dt: 27-01-06
5) G.O.O.No: 224/CGM(A)/2006, Date: 01-08-2006
6) Memo. No. D(HR)/CGM(HR)/DS(O&M)/LO(T)/PO/1194/2010-5,Dt: 04-08-12
7) Memo. No. D(HR)/CGM(HR)/DS(O&M)/LO(T)/POX/173/2013, Dt: 28-03-13
8) Lr. No. FA&CCA/Dy.CCA (A&T)SAO/IA/360/2016, Dt:20-12-2016
9) Memo. No. CE/O&M/Dr.NTTPS/Techl.11/F.5/D.No.24454/2018, Dt: 24-08-2018
10) Circular memo No. JS(Per)/DS(Estt)/AS(IR)/PO-F/66/2018; Dt:03-01-2019
11) Lr.NO SE(QC)/DE-1/F.QC/D.NO 219/19 dt 18.09.2019
12) Memo. No. CE/O&M/Dr.NTTPS/Tech-11/F.27/D.No.3493/2023,Dt:06-03-2023
13) Memo. No. CE/O&M/Dr.NTTPS/Tech-11/F.27/D.No.2682/2024,Dt:17-02-2024
14) Memo. No. CE/O&M/Dr.NTTPS/Tech-11/F.27/D.No.2725/2024,Dt:19-02-2025

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The "General Conditions" issued vide reference 14 cited above, are same and these conditions has to be attached to the tender schedules for finalization of various tenders through E-tender the works at Dr.NTTPS complex w.e.f FY 2026- 2027 onwards or until further orders are herewith enclosed.

All the Superintending Engineers are requested to adopt the above revised General Conditions scrupulously for all future proposals w.e.f. FY 2026-27 onwards or until further orders.

Encl: As above

for M. Narendra Prasad 4/3/26
CHIEF ENGINEER:O&M:Dr.NTTPS

To
All Superintending Engineers'/Dr.NTTPS → Through Mail

Copy to General Manager(Finance)/Dr.NTTPS
copy to Senior Accounts Officers'/O&M/Dr.NTTPS → Through Mail
Copy to Asst. Security Officer/Dr.NTTPS.
Copy to Dy. Executive Engineer/Techl.2,3 & 4, O/O CE/O&M/Dr.NTTPS. → Through Mail

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M. Ravitha Prasad 4/3/25

Chief Engineer/O&M/Dr.NTTPS

SECTION – I(A)

GENERAL TERMS AND CONDITIONS for E-PROCUREMENT TENDERS

Eligibility Criteria

1) The contractor shall have valid Labour license issued by Labour department of AP. If the contractor is new to Dr NTTPS, form-V will be issued by Dr.NTTPS and contactor has to obtain the labour license from Joint Commissioner of Labour, ELURU before commencement of work. If the labour license expires, the license shall be renewed and it shall be submitted at the time of commencement of work.

2) The contractor shall have thorough knowledge about the provisions of the Minimum Wages Act, 1948 and Factories Act including time to time changes in the Acts. The contractor shall follow all labour laws and Factories ACT. The contractor shall have good track record in their works and they should not be black listed at any where, in the tender period. The contractor shall submit undertaking mentioning that the firm is not a black listed firm at the time of quoting of tenders.

3) The tenderer shall have valid EPF & ESI registration numbers on firm name or for individuals, on their name.

4) The tenderer shall have valid GST registration & PAN on firm or for individuals, on their name. If Tenderer does not submit the proof of such registration to Dr.NTTPS/APGENCO, then the Tenderer shall be treated as unregistered Tenderer under GST law and relevant provisions of GST law will be applied accordingly.

5) The contractor/Firm/supplier etc should not have direct/indirect employment in any cadre/category in any of the power utilities of AP.

6) Tenderer should have experience in executing the similar type of work mentioned in the entire scope of work attached to the subject tender, at least once in the last 6 financial years including present financial year. The Performance/Satisfactory Work completion certificate as a proof of the same shall have to be furnished /uploaded along with the tender.

7) A) Solvency certificate or Net worth certificate shall be submitted to know the financial status of the firm/company along with the tenders , failing which tenders will be rejected.

B) Solvency Certificate (100% of the Estimated Contract Value) issued by any Nationalized/Scheduled bank and should not be older than one year from the date of participating in tenders (or) the NET WORTH certificate issued by a registered Chartered account (along with registered seal) in lieu of solvency certificate can also be submitted. These certificates should include the latest financial year turnover (For tenders floated on or before **01-10-2026** turnover of the year **2024-25** should be certified and for tenders floated after **01-10-2026** turnover of the year **2025-26** should be certified.)

Quoting of tenders

8) Before quoting the tender, the tenderer shall read and understand all the terms & conditions, nature of the work and scope of the work thoroughly.

9) The tenderer should work out their own rates, with reference being made to the Departmental current schedule of rates or the estimate rates mentioned in the schedulefor executing the subject work as per the schedule and Scope of work mentioned.

10) Overheads/Expences involved in the preparation and submission of the tender should not be claimed and it cannot be acceptable.

11) The tenderer has to quote either +/- % on ECV or item wise rates as sought in the tender schedule.

12)

a) In case the estimated rates for each item are furnished in the Bill of quantities, the tenderer has to furnish his overall Percentage (%) either **'+' or '-'** i.e. excess or less on ECV value/item wise rates as applicable. The excess or less tender percentage quoted by the bidder will be applied uniformly on the estimated rates of all the items in order to deduce unit rates for the items while preparing agreement/issuing Purchase Order. As such, the tenderer need not indicate individual item rates for each and every item listed in the schedule.

b) In case the rates are not furnished in Bill of quantities, the tenderer has to quote item wise rates.

c) The bidder should work out overall percentage carefully which can be either '+' or '-' i.e., excess or less on ECV. However, bidders who wish to change their offer already submitted can do, before closing date & time for submission of bids.

13) The contractor shall upload the soft copy regarding any additional information i.e. HSN/SAC codes, GST Numer, percentage of GST applicable etc. duly signed.

14) The tenders will be opened in the office of Superintending Engineer/***Concerned***/ Dr.NTTPS at 4:00PM by the Superintending Engineer /***Concerned***/Dr.NTTPS on the date given in the specification in the presence of such of those tenderers or their authorized representatives who may desire to be present and must produce the power of attorney to sign. If the tender opening day happens to be a holiday, the tenders will be opened on the next working day at the same time.

15) Tender shall be valid for a period of 120 days from the date of opening. If grid condition do not permit shutdown, extension of validity as necessary without any price increase should be given.

16) The rates and prices entered by the contractor in the bill of quantities when tendering shall be firm till the work is completed. The quoted rates shall be binding on the tenderer even for the award of part work.

17) The quantities mentioned in the tender are approximate and are liable to be increased or decreased.

18) Persons tendering must acquaint themselves and satisfy as to the physical conditions prevailing at the site and as to the sufficiency and the means of transporting all materials, labour etc.

19) The tenders quoted more than (+) 10% of the ECV and (-) 25% of the ECV are liable for rejection.

20) Additional Security Deposit: However, if the quoted value is more than 25% less of the estimated value and incase lowest tender is considered for awarding the work, the lowest tenderer has to pay the additional security deposit in addition to normal security deposit as follows:

a. "Tenders up to 25% less than the estimate will be accepted, but for tenders which are less by more than 25% of the estimate value, a Demand Draft/Bank Guarantee duly covering the complition of work with a claim period of additional 6 months, for 5% of the **Total Estimate amount excluding Taxes** shall be submitted by the tenderer as Additional Security Deposit".

b. The above Security Deposit / Addl. Security Deposit should be paid before commencement of the work as per the conditions of PO/ LOI. The Additional Security Deposit will be refunded to the contractor after successful completion of the work.

21) The Contractor shall quote the rates excluding statutory obligations such as EPF, ESI/GI and GST. Quoting the rates inclusive of EPF, ESI/GI & GST by the tenderers is liable for rejection, even he becomes L1. The tenderers shall have to quote SAC/HSN code & its applicable % of GST - for each and every item mentioned in the Annexure to the schedule and to furnish the same along with their tender.

22) The rates quoted by the tenderer shall hold well up to 10% of quantity over those given in bill of quantities.

(a) For all items of work which are in excess of 10% over the above quantities shown in Schedule 'A' bill of quantities of the tender the rate payable for such excess quantities during the current agreement/Purchase Order period shall be either tender rates or SS rates for the items plus or minus overall tender percentage accepted by the competent authority, whichever is less. The SS rates mean the rates with which the estimate is prepared for comparing the tenders.

(b) Preference in the selection from among the tenderers will be given, other things being equal, to those who are themselves professionally qualified or who undertake to employ qualified men at their cost to look after the work, who have got experience in similar works and enough equipment The tenderer should therefore state in clear terms whether they are professionally qualified or whether they undertake to employ technical staff and if so, to give their professional qualifications or of the staff to be employed and their experience etc. Incase the selected tenderer is one who has undertaken to employ technical staff under him, he should see that one of the staff is always at site of the work during working hours, personally checking all items of work and devote extra attention of such works as may demand special attention.

(c) A tenderer submitting a quotation which the tender accepting authority considers excessive and or indicative of the insufficient knowledge of current prices or definite attempt at profiteering will render himself liable to be debarred permanently from tendering or for such period as the tender accepting authority may decide.

23)

a) The tenderer shall enclose to the tender a certificate of income tax verification form the appropriate income tax authority in the form prescribed thereof the IT clearance certificate is not required to be submitted by the contractors while submitting their offers, as per the Circular No.53/191/2002-TPL, Dt:13.02.2003 of CBDT.

b) In case of proprietary of partnership firm, it will be necessary to produce the certificate before mentioned for the proprietary or proprietors and for each of the partners as the case may be. If the tenderer had already produced the certificate during the calendar year in which the tender is made, it will be sufficient, if particulars of the previous occasion are given.

c) Tenders received without such a certificate/confirmation an aforementioned are liable to be rejected.

24) The contractors, who have the GST registration, shall have to submit the GST registration number, SAC/HSN code and applicable percentage (%) item wise along with their tender.

EMD & SD DETAILS

25)EACH TENDERER MUST PAY EARNEST MONEY DEPOSIT AS FOLLOWS:

a. Each intended tenderer must pay the EMD amount as specified in Tender Notice/Tender Specification/other Documents up loaded in the subject tender.

b. Payment of EMD should be done by Electronic Payment Gateway accepts all Master and Visa Credit Cards issued by any bank and Direct Debit facility/Net Banking of ICICI Bank, HDFC, Axis Bank to facilitate the transaction. The bidders shall also upload in the e-procurement web site the scanned copies of reference approved letter of PEMD deposited with APGENCO.

26) EACH TENDERER MUST PAY EARNEST MONEY DEPOSIT AS FOLLOWS: Each intended tenderer must pay the EMD amount as specified in Tender Notice/Tender Specification/other Documents mentioned in the subject tender, as per the conditions mentioned below:

a. FOR WORKS COSTING (Total Tendered Value against which the firm has to quote their offer) UPTO Rs.100.00 LAKHS:

Those who do not have permanent earnest money deposit of Rs.5,00,000/- (Rupees Five lakhs only) with the APGENCO shall pay the amount as follows:-

i) 0.5% of the Estimated contract value in the shape of DD/BC/Pay Order.

ii) NO EMD upto Rs 2.0Lakhs of Estimate value for Single / Limited tenders.

iii) For BHEL no EMD shall be required for Purchase of Material /Execution of Works in respect of all types of tenders. EMD shall not be required in case of other PSUs under limited tender/single tender systems and for purchase of spares /stores/ capital items /equipment of proprietary nature from Original Equipment Manufacturer /Original equipment supplier and distributor duly authorized by them.

iv) Alternatively, The vendors may deposit with the corporation, **permanent EMD** of rupees five lakhs only Rs.5,00,000 in the form DD/pay order/banker cheque or Bank Guarantee for a period of three years constituting the same sum as security for the compliance with the obligation undertaken in the tenders submitted by the tenderer.. Tenderer shall be entitled to submit offers and to have them considered without payment of EMD with each tender separately. An exemption certificate shall be issued to such vendors and they need to furnish reference of this certificate along with tender documents and also super scribe the reference on the envelope so that offers are accepted for opening.

b. FOR WORKS COSTING (Total Tendered Value against which the firm has to quote their offer) ABOVE Rs.100.00 LAKHS:

i) The contractor shall pay Rs 1,00,000 in the shape of DD/BC/Pay Order and 2% of the Estimated value as Bank Guarantee DD/ BC/Pay order.

ii) For BHEL ,No EMD shall be required for Purchase of Material /Execution of Works in respect of all types of tenders.EMD shall not be required in case of other PSUs under limited tender/single tender systems and for purchase of spares /stores/ capital items /equipment of proprietary nature from Original Equipment Manufacturer /Original equipment supplier and distributor duly authorized by them.

c. Earnest Money in cash form cannot be accepted in any circumstances.

d. If EMD is not paid fully, the tender will be rejected.

e. Tenderers are not permitted to withdraw their or his offer once made for a period of 120 days after the opening of the tenders and in the event of such tenderers withdrawing their tenders within 120 days after opening of tenders the Earnest Money deposited by him/them will be forfeited to the APGENCO.

f. The EMD will be refunded to the un-successful tenderer except L1& L2 after the financial and arithmetical checkup is carried out by accounts wing. **The EMD of L2 will be refunded after issue of PO/LOI/PLOI tender finalization to L1 tenderer "OR" on expiration of 120 days from the date of tender whichever is earlier.**

g. The Earnest Money will be retained in the case of successful tender and will not carry any interest. It will be dealt with as provided in the tender.

h. Exemption from payment of EMD for SSI /NSIC Units: Registered SSI Units or the MSE (MSEs) with NSIC registered under Single point Registration Scheme (SPRS) by the Dept of Industries/Govt. of AP are eligible for exemption from payment of EMD, subject to

the following conditions. SSI acknowledgement is not accepted.

i) The list of Items - for which the Firm is registered, must be relevant to the tendered items.

ii)The quoted price shall be less than the monetary limit stipulated in the Registration Certificate. unless otherwise the Certificate issuing Authority has clearly mentioned in the Certificate as "Exempted from deposit of Earnest Money irrespective of value of Monetary Limit "

iii)The BIDDERS who fulfill the above conditions shall upload a copy of valid Certificate of Registration either with NSIC indicating details such as Monetary Limit, details of items covered in the registration, validity period of Certificate etc. However, please note that exemption will be considered purely at APGENCO's discretion.

27)THE EMD WILL BE FORFEITED IN THE FOLLOWING CASES:

a. When a tender is to be accepted, the tenderer whose tender is under consideration shall attend office of the Superintending Engineer/***Concerned***/ Dr.NTTPS before the end of the period specified by written intimation to him. If the tenderer fails to attend the office before the end of the period specified, his tender will not be considered and EMD will be forfeited.

b. When the successful tenderer does not accept the purchase order or preliminary acceptance letter or the letter of intent. He shall forth with upon intimation, being given to him by the Superintending Engineer /Executive Engineer APGENCO on acceptance of his tender attend the office of the SE/EE/ in-charge of work and sign on **duplicate copy of the purchase order/**agreement in the proper departmental form of the due fulfillment of the contract. The contractor is bound by the specifications of A.P.D.S.S./General Terms and conditions appended to the enquiry/Tender specification.

c. Failure to sign on the duplicate copy of the Purchase order duly accepting the Purchase order/Failure to enter into required agreement of to make the security deposit as defined in the above paragraphs shall entitled shall entail forfeiture of the EMD.

d. If the successful tenderer Fail to sign on the duplicate copy of the Purchase order duly accepting the Purchase order/sign the agreement on or otherwise commit default, the APGENCO shall have the right to recover damages according to law apart from forfeiting the EMD.

e. When the successful tenderer fails to furnish the security deposit/Additional Security Deposit if applicable as per the specification/Purchase Order, within 15 days from the date of issue of preliminary acceptance letter or letter of intent or Purchase order.

f. Once the bidder(s) submitted their bid(s), they shall not be permitted to withdraw their offer(s) under any circumstances and if they do so the EMD Paid by them inclusive of PEMD shall be forfeited.

g. Revoke the tender or increase the rates after opening the tender but during the validity period of their offers.

h. If the contractor fails to execute the orders.

i. EMD of successful bidder shall be returned after acceptance of order and furnishing of Security Deposit, if provided in the purchase order(s)(EMD can be converted into security Deposit and suppliers may be asked to furnish the balance amount). **EMD of the unsuccessful bidder shall be returned only after issue of PO/LOI/PLOI to the L1 tenderer. The EMD of the**

L1 tenderer shall be remitted to finance wing only after issue of PO/LOI/PLOI to the L1 tenderer.

j. Permanent EMD can be refunded if so desired by vendors, in which case they shall be required to deposit requisite EMD with each tender.

28) EACH SUCCESSFUL TENDERER MUST PAY SECURITY DEPOSIT AS FOLLOWS:

a) In addition to the E.M.D the balance of amount towards SD shall be furnished by successful vendor @ 2.5% of order value **i.e gross PO value and excluding taxes**. in the form of Demand Draft/pay order/banker's cheque in favour of APGENCO or Bank Guarantee **within one month from the date of receipt of purchase order/contract.**

b) EMD of successful bidder can be converted into Initial SD provided the balance amount is remitted in the same form.

c) NO Security Deposit shall be required for individual purchaser order value upto Rs.2 Lakhs. For orders above Rs.2 Lakhs, security deposit may be specified depending upon the merit of the case and past satisfactory performance of vendor i.e., proven dependability and reliability. With the approval of tender approving authority, requirement of SD can be waived off on the case - to - case basis, keeping in view the above factors.

d) SD shall not be insisted in cases of PAC single tender from OEM/OES/PSU.

e) Exemption on payment of SD for Valid registration of NSIC units will be considered.

f) Further, 5% of the value of work done will be recovered from the running bills for the due fulfillment of the contract and the amount so recovered will be refunded to the contractor along with final bill or after completion of Guarantee period, if applicable. This amount will not bear any interest. The successful tenderer may also furnish the balance S.D by way of bank guarantee from scheduled bank approved by the APGENCO covering a period of 6months over and above the contract period. A proforma of bank guarantee is enclosed herewith.

g) Alternatively, The vendors may deposit with the corporation, permanent Security of Rs 20,00,000/- in the form of DD/Pay order/banker cheque or BG from any Government Banks/Nationalised banks/ Public sector banks/scheduled banks or any other bank(s) notified from time to time for a period of three years constituting the same sum as towards guarantee for satisfactory execution of order/contract. Such firms will be exempted for payment of SD. An exemption certificate shall be issued to such vendors and they need to furnish reference of this certificate along with tender document.

h)Wherever the amount of Security Deposit to be submitted for a Single Purchase Order/Work Order exceeds by RS 20.00 Lakhs , the balance amount shall be paid in the shape of DD/BC/ Pay Order /BG.

i) The above S.D shall be furnished within 30 days on receipt of the letter of acceptance or Purchase Order and shall commence the work, from the date specified. Otherwise, the EMD will be forfeited. No interest shall be paid on EMD and SD amount

j) **The Security Deposit will be refunded to the contractor after successful completion of the contract period or after completion of Performance Guarantee period (if applicable).**

k) The Firm/Contractor shall have to pay the balance Security Deposit on the value of the supplemental items over and above the face value of the agreements/Pos of various works awarded.

STATUTORY FULFILMENTS

29) The successful tenderer and all persons employed by him on the site in or about the execution of the work shall confirm in all respects with the provisions of all acts and all orders and regulations made by the competent authority that shall be applicable to the works or any temporary works and binding up to the contractor or persons employed as aforesaid and in particular, but without prejudice to the generality of the foregoing, such matters as considering the safety healthy or welfare of persons working on the site.

30) The contractor/successful tenders should obtain Labour License prior to the commencement of the work (i.e.) piece Rated/Job work and to give due intimation to the concerned authorities on completion of the work awarded to him and to submit half yearly returns as required under Sub-Rule (1) of Rule-82 of the A.P Contract Labour (Regulation and Abolition) Rules, 1971. Further the contractor should comply with all other statutory obligations contemplated under the said Central Act, including maintenance of records.

31) The contractor should possess/obtain valid E.P.F code number for which remittances are to be made. ESI scheme shall be covered for the labour so engaged. The relevant records shall be maintained and produced to A.P.GENCO enforcement Authorities. The contractors who are having valid labour license, independent E.P.F and E.S.I code numbers need only to quote. However, Tender Schedules shall be issued to all the Contractors who do not possess EPF Code No. also subject to the out come of the orders that may be passed by the Hon'ble High Court in the petitions filed by certain contractors or in any matter connected therewith or incidental thereto. **In case of any deviations in EPF remittances, the contractor himself is responsible.**

32) The various existing clauses regarding payment/reimbursement of taxes & duties shall be absorbed/modified suitably to the rules & regulations issued by Government from time to time viz. for implementation of GST, without any further notice. Payment of the same shall be made accordingly.

33) The contractor will at all times duly observe the provisions of employment of Children Act XXVI of 1938 and any re-encashment or modification of the same and will not employ or permit any persons to do any work for the purpose or under the provisions of the said Act. The contractor shall agree to indemnify the APGENCO or any person employed by the Department by reason or any default on the part of the contractor in the observance and performance of the provisions of the Employment of Children Act XXVI of 1938, or any re-enactment or modification of the same.

34) The contractor shall indemnify APGENCO against all claims which may be made under the Workmen's Compensation Act or any statutory modification thereof or rules there under or otherwise for in respect of any damage or compensation payable in consequence of any accident or injury sustained by any workmen engaged in the performance of the business relating to this contract. Contractor is responsible for all the accidents and the consequences due to any accident that takes place inside or outside the premises to their workers.

35) Goods and Service Tax (GST) & Cess: The Tenderer shall submit the proof of GST registration to Dr.NTTPS/APGENCO at the offer stage. If Tenderer does not submit the proof of such registration to Dr.NTTPS/APGENCO then the Tenderer shall be treated as unregistered Tenderer under GST Act and relevant provisions of GST Act will be applied accordingly.

Tenderer's price/rates shall be exclusive of GST & GST Cess (if applicable) herein after termed as GST. Tenderer shall submit to Dr.NTTPS/APGENCO the GST compliance tax invoice/debit note/revised tax invoice on the basis of which Dr.NTTPS/APGENCO will claim the input tax credit in its return.

If GST is payable on reverse charge then the same will be paid directly to Govt by Dr.NTTPS/APGENCO under reverse charge as per GST Act.

In case Dr.NTTPS/APGENCO is deprived off the Input tax credit due to any reason attributable to Tenderer, the same shall not be paid to the Tenderer or will be recovered from the Tenderer.

If any changes in GST Act, the same will be applicable time to time accordingly.

TDS under GST (if applicable) at the rates applicable in vogue will be deducted from your bills. Necessary TDS certificate so that effect will be issued by SAO/O&M/ Dr.NTTPS accordingly.

WORK PROGRESS

36) The tender shall make his own arrangements for providing all facilities like boarding and transporting etc. for his workers.

37)

a) PROGRAMME OF WORK: The starting time and completion time are the essence of the tender. As the time bound programme is firmly committed the starting time and completion time should be strictly adhered to. It will not be possible to grant extension in completion time except under extra-ordinary circumstances, which will be decided by the Superintending Engineer. The contractor shall ensure completion of the job in all respects **with in ..... days** from the date of handing over of the equipment / unit as and when required during the year.

b) The attention of the tenderers is directed to the contract requirements as to the time of beginning the work, the rate of progress and dates for the completion of the whole work and its' several parts.

c) However, the Executive Engineer or Engineer in charge of the work will decide the priority of various items of work and their location and direct the successful tenderer for execution so as to complete the entire work as required. The date of commencement of this programme will be the date on which the site (premises) is handed over to the contractor. Before commencement of work, the contractor has to sign on duplicate copy of the purchase order/the agreement shall be concluded before the site is handed to the contractor and he commences the work and submit the required documents as per PO conditions.

d) Further, it shall also be noted by the tenderer, if on any account, work gets dislocated due to the site being not available for work on any day or due to any other reason, it is not binding on the APGENCO to pay any compensation to the contractor but the corresponding extension of time will be granted to the contractor.

e) The contractor should commence the work immediately after receipt of intimation to start the work and complete within scheduled period as per the instructions of Engineer – in –charge.

f) The contractors, who quote for the overhaul works, should have the capability to take up the overhaul works simultaneously even if two or more units are given for overhauls at a time at Dr.NTTPS, failing which, the extra amount incurred towards carrying out the unexecuted works will be recovered from the running bills of the contractor in addition to levy of penalty at the discretion of the Superintending Engineer/ Concerned including black listing of the firm.

38) No part of the contract shall be sub-let without the written permission of the Superintending Engineer in charge nor shall transfer be made by the power of attorney authorizing others to receive payment on the contractor's behalf.

39)TERMINATION AND PENALTY: The under signed has the right to terminate the P.O. /and in case of agreement, the Superintending Engineer duly authorized in this behalf may terminate the agreement at his option at any time. In the case of bad workmen ship defective/interior material being used or not being completed as per schedule, such above officer or the Executive Engineer may also fine the contractor not less than Rs.100/- and not more than 5% of the contract value of the work along with applicable GST amount for slow progress of work provided, however, that any authority higher than that of an authorized Executive Engineer, may in his absolute discretion waive or modify any fine imposed by the authorized Engineer under provision of this clause.

40) In case of delays on contractor's part at any stage during the scheduled period or after, APGENCO shall have the option of ensuring the completion of the job by way other means at his disposal and charges on this account shall be recovered from the contractor. These shall

be adjusted against contractor's bills or security deposit, along with initiation of action towards blacklisting of the contractor.

41) Contractor is responsible for all the accidents and the consequences due to any accident that takes place inside or outside the premises to their workers. The APGENCO will pay no compensation if any, accidents, occur to his workers while carrying out the work. Insurance against all types of risk for the contractor's workers during the period of execution of the work will have to be arranged by the contractor at his own cost.

42)

a) The successful tenderer shall not entitle for idle labour charges under any circumstances. In case of any delay due to department handling over site or material, suitable extension of time will be granted.

b) No female labour shall be employed after darkness. No person below the age of eighteen years shall be employed.

c) All traveling expenses including provisions of all necessary transport to and from site, lodging allowances and other payments to the contractor's employees shall be the responsibility of the contractor.

d) The Contractor employees shall wear identification badges while on work at site.

e) All the skilled, semi-skilled, un-skilled labour will have to be arranged by the contractor, himself at his own cost for the satisfactory completion of the work.

43) The tenderer shall be responsible for keeping the entire area allotted to him clean and free from rubbish, debris etc., during the period of contract. The contract shall employ enough number of special personnel to thoroughly clean his work area at least once in a day. All such rubbish and scrap material shall be stacked or disposed in a place to be identified by APGENCO Engineer. Material and stores shall be so arranged to permit easy cleaning of the areas where equipment might drip oil and cause damage to the floor.

44) After completion of the work, the balance materials that were issued to the contractor shall be returned over to the engineer in-charge. If the contractor does not return the balance materials and T&P to the department, their cost will be recovered at the market rate prevailing at the time of supply or the issue rate, whichever is greater plus shortage charges plus 25% plus GST, if leviable.

45)

a) FIRE PROTECTION: The work procedures that are to be used during the execution of work shall be those, which minimize fire hazards to the extent practicable. Combustible materials, combustible waste and rubbish shall be collected and removed from the site atleast once in a day.

b) All the materials such as working drawings, plans etc which are combustible but essential for the works to be executed shall be protected against combustion resulting from welding sparks, cutting, flames and other similar fire sources.

c) All the tenderer's supervisory personnel and sufficient number of workers shall be trained for fire fighting and shall be assigned specific fire protection duties. Enough of such trained personnel must be available at the site during the entire period the contract.

46)SECURITY: The tenderer / contractor shall have total responsibility for all equipment and materials in his custody stored, loose, semi-assembled and or erected by him at site. The tenderer/contractor shall make suitable security arrangements including employment of security personnel to ensure the protection all materials, equipment and works from theft, fire, pilferage and any other damages and loss.

47) The work being carried out by the contractor will be supervised and inspected by the concerned APGENCO Engineer.

48) The APGENCO direct that in the case of both Lump-sum and K2 contracts/Purchase Orders of Rs.50,000/- and above in value, the contractor irrespective of his clause shall be required to employ the personnel as follows on the concerned works at his own cost whether technical skill is required or not.

Cost of work	*Scale of Technical Staff*
From Rs.50,000/- to Rs.1.00Lakh	One ITI Candidate
Between Rs.1.00 Lakh & 5.00 Lakhs	One Diploma holder
Between Rs.5 Lakhs & Rs.15 Lakhs	One Graduate Engineer or Two Diploma holders
Between Rs.15 Lakhs & Rs.25 Lakhs	One Graduate Engineer and one Diploma holder
Above Rs.25 Lakhs	Two Graduate Engineers and Two Diploma holders

The appointment of staff shall be on full time basis and they shall be available at the work site whenever required by the Engineer-in-charge to take instructions.

In case of failure of the contractor to employ Technical Staff as above, the recovery shall be made from his bill at the following rates.

Cost of work	*Rate of recovery / day*
Between Rs.50,000/- to Rs.1.00Lakh	Rs. 253.00
Between Rs.1.00 Lakh & 5.00 Lakhs	Rs.315.00
Between Rs.5.00 Lakhs & Rs.15.00 Lakhs	Rs.388.00
Between Rs.15.00 Lakhs & Rs.25.00 Lakhs	Rs.702.00
Above Rs.25.00 Lakhs	Rs.1405.00

49) All and any disputes or differences arising out of or touching the order based on this specification shall be decided by panel of arbitrators as detailed below.

Value of Claim	*Panel of Arbitrators*
Disputes involving amount Up to Rs.10,000/- and below	S.E of the APGENCO other than the Circle to which the dispute relates
Disputes involving amount From Rs.10,000/- to Rs.50,000/-	Any Chief Engineer of the APGENCO

There shall not be any reference of disputes, the value of which is above Rs.50,000/- to arbitration. The parties shall approach the competent civil courts having jurisdiction, if any such disputes arises.

For the purpose of the agreement/Purchase Order for the work all transactions shall be deemed to have taken place within the state of A.P and the courts in AP shall have jurisdiction over the matters arising under or over of the agreement/Purchase Order for the work.

50) In case of doubt or clarification or ambiguity or ruling orders of the Superintending Engineer will be final and binding on the contractor.

51) All the consumables including those required for welding works such as welding electrodes, gas filler rods etc will be supplied free of cost by APGENCO.

52) All the spares to be required to be replaced and special T & P including welding transformers, industrial gases, all electrodes, all hoists, slings etc., required will be supplied by the APGENCO free of cost, general T & P like spanners, hammers, hacksaws are to be provided by the contractor. A list of T & P that he is bringing in to the station shall be provided to the Engineer after contract award. The T & P of APGENCO shall be returned back in good condition after completion of the works. The cost of any damages or loss of the special T & P will be recovered from the contractor.

53) All the connected minor works that are necessary for completion the main work are to be carried out by the contractor and no extra claims will be admitted. The contractor is bound to execute all supplemental items that are found essential, incidental and inevitable during execution of main works, at the rates to be worked out as detailed below.

a. Supplemental items directly deducible from similar items in the original agreement/Purchase Order: The rates shall be derived by adding to or subtracting from the

agreement/Purchase Order rates of such similar items, the cost of the difference in quantity of material or labour between the new item and the similar item in the agreement/Purchase Order worked out with reference to the scheduled of rates adopted in the sanctioned estimate with which the tenders were compared plus or minus overall tender percentage.

b. **Fixation of rates for items of work in excess of quantities in Schedule 'A' bill of quantities of tender:**

a. The rates quoted by the tenderer shall hold well up to 10% of quantities over those given in bill of quantities.

b. For all items of work which are excess of 10% over and above quantities shown in Schedule 'A' bill of quantities of tender the rate payable for such excess quantities during the currency of agreement/contract period shall be either tender rates or SS rates for the items plus or minus overall tender percentage accepted by the competent authority, whichever is less. The SS rate means, the rates with which the estimate is prepared for comparing the tenders.

c. **Fixation of rates for intermediate payments for items of work whose quoted rates are high:** For all items of work, the quoted rates of which are high, intermediate payments will be made provisionally at the estimate rates plus or minus overall tender percentage. Full accepted agreement/Purchase Order rates would be paid only after all the items of work are completed or earlier at the discretion of the Chief Engineer/O&M/Dr.NTTPS. The tender accepting authority will decide each item the rates of which are considered to be high for the purpose of this clause and his decision shall be final and blinding on the contractor.

54) The works are to be normally carried out during six days in a week, however, in case of emergency/ break down and overhauls (or) whenever the situation warrants; the works will have to be carried out as per the request of the Engineer-in-charge to avoid loss of Generation.

55) The CE/O&M/Dr.NTTPS or other competent sanctioning authority reserves the right to suitably modify the period of work to be awarded to the Contractors/Agencies to suit departmental requirements. No objections or correspondence will be entertained in this matter.

56) Any damage, breakage of APGENCO's equipment etc., during execution of the subject work shall be made good by the contractor.

57) If any contractor worker found working without using the safety equipment like safety helmets, safety shoes, safety belts etc., or without anchoring the safety belts while working at height the Engineer in charge/Safety Officer shall have the right to penalize the contractor for Rs.200/- per person per day and such worker shall be sent out of the work place immediately and shall not be allowed to work on that day. Engineer in charge/Safety Officer will also issue a notice in this regard to the contractor.

DISBURSEMENT OF WAGES & STATUTORIES:

58) The independent/job work/piece Rated Contractors shall make payment of Minimum Wages, CLA along with other statutories as applicable from time to time in terms of the provisions of the Minimum Wages Act, 1948 to all those workers engaged by them in the execution of assignments entrusted to him either in the Power Station or out side the Power Station and maintain necessary records as prescribed under the said Act and the rules made there under and make it available for APGENCO authorities for inspection as and when needed apart from to the Labour Enforcement Authorities;

a. The contractor shall make the payment of wages to the workers engaged on or before 7th of every suceeding month duly following minimum wages act. Minimum Wages, CLA along with other statutories shall be paid through Bank Accounts/Account Payee cheques to the workers engaged by the concerned "piece Rated /Job work contractors" in the presence of APGENCO representative and the Attendance and Wage Register maintained by the Contractors shall be certified by APGENCO representative. The Contractor should also furnish Xerox copies of such Register to the Principle Employer.

b. The contractor should pay EPF & ESI contributions **(i.e., both Employer share and Employee share)** to the authorities for the labour engaged by them with in stipulated period i.e. by 15th of every suceeding month to avoid penalties. If at all any late remittance of the EPF payments after due date, contractor shall make payment duly calculating the interest and penalty also at time of actual payment.

c. The above procedure shall be enforced scrupulously to all Firms/Agencies/ Contractors who entrusted to execute the works awarded by the APGENCO.

d. If any firm/agency/Contractor fails to disburse the payment of Minimum wages, CLA along with other statutories and fails to maintain the record of Muster Roll/Wage Register, the bills of such Contractors shall not be processed and not be released until minimum wages are disbursed and records are maintained and Xerox copies there of are furnished by the contractor to that effect;

e. If any firm/agency/Contractor fails to disburse the payment of Minimum wages & CLA and other statutory payments to the Contractor's Labour engaged by him at the time of execution of awarded works, the amount so arrived will be recovered from the amounts payable to him or from the bills raised in other works in the same plant or in any other power station of APGENCO.

f. In case of the OWNER becomes liable to pay any wages or dues to the labour or to any government agency under any of the provisions of the minimum wages act, workman compensation act, contract labour regulation abolition act or any other laws due to act of omission of the contractor, the owner may make such payments and shall recover the same from the tenderer's / contractor's bills raised in other works in the same plant or in any other power station of APGENCO.

g. As a measure of abundant caution, a copy of the true extract of the Muster Roll/Wage Register in which representative of APGENCO signed to the proof of witnessing payments of wages to the workers of contractor shall be insisted upon to be enclosed by the Contractor while submitting the bills for payments and the concerned Executive Engineer shall send the same to the senior Accounts Officer/O&M/Dr.NTTPS along with the bill to preserve the same as a "Permanent record" to make available as and when needed at a later date'.

h. Based on the details available in the Master Roll/Wage Register, the EPF remittances can be verified properly before passing the bills of the works executed by the Contractor. Wherever the ESI is not applicable, the Firm /Agency/Contractor should cover their workers under valid "Group Insurance Scheme" so as to comply with the provision of the workmen's compensation.

i. The statutory payments of EPF & ESI shall be reimbursed to the contractor subject to the condition that the contractor should produce the satisfactory documentary evidence in original in support of contributions made by him towards statutory payments and that too within the contract value only. However, the claim towards EPF & ESI will be restricted for reimbursement to the extent of provision made in the working estimate (or) actual payment made by the contractor for the work, whichever is less. Penalties levied due to non-payment of statutory amount to authorities with in stipulated period, cannot be reimbursed. The penalties levied if any, shall be borne by the contractors themselves.

j. The contractor is deemed to be the principal employer in respect of the contract labour engaged by him in execution of work and contractor shall be responsible to pay both the EPF Contributions payable by himself as a principal employer to the PF authorities concerned in the independent PF account number held by him. The contractor shall produce the proof of payment of statutory liabilities, with out which the final bill will not be settled.

k. The contractor should provide to his workmen the required safety appliances including proactive clothing and guards, such as Helmet, safety shoes, hand

gloves, masks, safety belts, etc for working hazardous areas, as identified by Engineer-in Charge.

l. **AS per the ESI norms , the contractor should register the contractor labourer in the ESI portal within 10 days from the issue of the Purchase order/ commencement of the work**

59) All the required personal protective equipment like safety shoes, helmets, safety belts and respirators, etc., have to be provided to the workers engaged by the contractors while carrying out the work inside the Dr.NTTPS premises.

60) The tenderer shall provide necessary first aid facilities for all his employees, representatives and workmen at the site. Enough number of tenderer's personnel shall be trained in administering first aid.

61) The contract is liable for cancellation, if either the contractor himself or any of his employee is found to be a Gazetted Officer of the Government or APGENCO, who retired from service and has not obtained the permission from the Government or APGENCO for accepting the contract or employment within a period of two years from the date of his retirement.

62) In all cases of personal injury to workmen employed by a contractor on this work for which the contractor is liable to pay compensation under the workmen's compensation Act, he shall pay the prescribed medical fee to the Medical Officer for issue of 'C'-'D' forms as prescribed, failing which the said fee will be paid to the Medical Officer by the Department and recovery effected from the contractor's bills.

63)PHOTO GATE PASS SYSTEM APPLICABLE AT POWER STATIONS:

(a) The firm/Agency or Individual Contractors running business on proprietary basis, as and when awarded with execution of "job work/piece Rated works Contractor" in the power stations, which necessitates them to engage their own workers in performing the contractual obligations, shall approach the concerned Head of Sub-Division/Division with a written requisition , indicating the number of persons necessarily have to enter the plant premises to carry out the work, the details of number of skilled/un-skilled persons, commencement/completion of works, along with the photos of such workers, besides furnishing the details like Labour License, EPF code Number, ESI Code Number or valid Group Insurance Policy Number etc., in the prescribed proforma.

(b) The concerned Head of the Sub-Division/Division shall verify the details and forward the written requisition given by the contractor with due recommendation to the Security Officer in-charge of the Power Station for issuance of "Photo Gate Pass" in the prescribed proforma.

(c) The concerned Security Officer in-charge of power station on receipt of written requisition from EE/Dy.EE concerned shall collect declaration signed by the concerned contractors, in the prescribed proforma.

(d) The concerned security Officer in-charge of power station shall scrutiny the details and issue "Gate Passes" in the prescribed proforma based on which the workmen engaged by the 'piece rated/job work contractor' shall be permitted to enter plant premises to carryout the works, assigned by the concerned' piece rated' job/ work contractor'.

(e) While issuing 'Photo Gate Pass', Security Officer in-charge allow a code number on the written requisition and necessary entries shall be made in the register maintained for this purpose so that retrieval of records as and when needed for verification or otherwise is made easier. Upon completion of the work the concerned Security Officer shall recover the "Photo Gate Pass" from the concerned "Piece Rated/Job Work Contractor" who shall arrange to surrender all such passes to the Security Officer in-charge of Power station.

(f) The contractor shall submit the following details of the labour deployed by him at the time of applying for Gate passes.

(1) Contractor Name
(2) Supervisor Name
(3) Contractor Phone Number
(4) Work Order Number

(5) No. of Persons
(6) Name of the Labourer
(7) Father Name
(8) Date of Birth
(9) Gender
(10) Social Status
(11) Aadhar Card Number
(12) Photograph
(13) Educational Qualification
(14) Category of Labourer (Skilled/Semi-Skilled/Un-Skilled)
(15) Validity
(16) Marital Status
(17) Thumb Impression/Iris – to obtain at the time of entering the details of the labourer.

(g) The workers engaged by the "Piece Rated/Job work contractors' will hold the "Photo Gate Pass" conspicuously while at work and show, if for verification of bonafides as and when needed by the Officials of APGENCO. On expiry of the validity of "Photo Gate Pass", the concerned "Piece Rated/Job work contractor' shall surrender them at the security and a new "Photo Gate Pass" shall be obtained by following the above mentioned procedure as and when the need arises in future and it shall be the responsibility, if the Security Officer in-charge of the Power Station to report to the Unit Head the failure on the part of the "Piece Rated/Job Work Contractor" to surrender the passes;

(h) The Security personnel at the time of "entry" and "Exit" of such workmen of the "Piece Rated/Job Work Contractors" have to check up and frisk thoroughly to ensure that no unwanted and un-authorized materials are carried into and outside the plant.

TERMS OF PAYMENT

64) The following terms of payment are only acceptable. Tenders received stipulating terms other than the following payment terms will be invalidated.

(a) 95% of the payment due will be paid within 90days after completion of the work.

(b) If the contractor fails to fulfill the above clauses, the same will be recovered from bills and will be rendered to statutory authorities and balance amount only will be paid to the contractor.

(c) The income tax and other statutory taxes, if any as per rates applicable will be deducted in addition to the recovery of 5% retention amount. The retention amount will be released only after satisfactory completion of the work/ after completion of the performance Guarantee period, if applicable.

65) All the contractors have to claim EPF/ESI reimbursement on or before June 30th of succeeding financial year invariably for admittance of their claim failing which reimbursement is liable for rejection.

OTHER CONDITIONS

66) The undersigned does not bind him to accept the lowest or any tender. The undersigned reserves the right to reject any or all tenders without assigning any reason.

67) The Chief Engineer/O&M/Dr.NTTPS or other sanctioning authority reserves the right to reject any tender in full or part or all tenders without assigning any reasons therefore.

68) The A.P.GENCO reserves the right of deleting any or all items of the works mentioned in the schedule without assigning any reasons thereof on the tenderer will not be eligible to claim any sort of compensation in this regard.

69) The contractor has to sign on the Field Quality Plan (FQP) furnished by Quality wing which is enclosed along with the tender schedule during the tendering process. The Field quality plan (FQP) signed by the L1 contractor should be approved by the Quality wing before commencement of the work. /Issuance of Acceptance letter.

70) Estimates were prepared and item rates are derived based on the VDA points as declared by commissioner of Labour and applicable as on and upto 31-03-2027 and "**NO**" hike in CLA is applicable for all the works for the entire period of 2026-27". Further, the works will be awarded to

those contractors who expresses their willingness to execute with their quoted rates/Negotiated rates with no further hike in CLA for the entire period of 2026 -27.

71) **The contractors/ Firms possessing "Registration of Firms" Certificate or any of the registrations like MSME registration , EPF & ESI Registration, GST Registration, Labour License certificate shall be considered as " Firm Registration" and are eligible for participating in Tenders.**

However, "Registration of Firms" certificate is mandatory in case of Partnership firms and they shall submit a copy of the document for participating in tenders.

In case of participation of tenders in Civil works, The contractor or Firm should mandatorily produce Contractor registration certificate obtained from APGENCO or from any Government organization failing which will be rejected.

M. Harnath Prasad 4/3/26

Chief Engineer/O&M/Dr.NTTPS

SECTION – I (B)
SAFETY CLAUSES

(1) OBJECTIVES: The purpose of this document is to provide broad guidelines to be followed on the safety of APGENCO Contractor's employees. IT SHOULD BE READ AND UNDERSTOOD CLEARLY THAT IT IS THE CONTRACTOR'S RESPONSIBILITY TO ENSURE AND COMPLY WITH ALL SAFETY REQUIREMENTS. Nothing stated or implied in this safety Conditions shall relieve the contractor from any obligation or responsibility placed upon him by the conditions of the contract or under the status.

(2) GENERAL CONDITIONS: It shall be the duty of the Contractor to ensure that all persons deployed on all the systems and apparatus are thoroughly conversant with the Statutory Requirements and Safety Rules governing any work they may have to undertake on these systems and apparatus.

(3) The Contractor shall provide safe working conditions to all workmen and employees at the site including safe means of access, railings, stairs, ladders, scaffoldings, etc. The Scaffoldings shall be erected under the control and supervision of an experienced and competent person.

(4) RESPONSIBILITIES: It shall be the responsibility of all contractors and their employees, agents/ authorized representatives to comply with:

(a) All relevant statutory requirements, Acts of parliament, Regulations, Orders and Approved codes of practice.

(b) The contractor shall ensure effective supervision to carry out the work in accordance with the provisions of factories act 1948 and any other statutory provisions applicate for them.

(c) Barriers with identified danger marks shall be erected around any holes or openings, which may become a source of danger. Warning notices be displayed during daytime and red lamps displayed during of hours of darkness it is necessary to remove any trench slabs, gully grating or mesh or other type of floor sections, permission must be obtained from the Engineer in-charge and such slabs, greetings or section must be replaced properly and as soon as possible, should any slabs be broken, then immediate steps shall be taken to prevent danger pending their replacement.

(d)

(i) The contractor shall not remove any apart of equipment (like guards etc.) or gang Ways (like finching base etc.) or other systems without the permission of Engineer-in-charge. Where, any guards are removed for repair, they will be proved back, before any operation or usage of the equipment. The contractor shall not hand over/allow to operate these equipment till the guards are provided at its place.

(ii) In case any opening in gang way/access etc., is cause due to removing any part of Base for lifting of material, either the opening shall be suitably fenced or suitably covered to prevent fail of any person in such opening. Otherwise, temporary fencing shall be provided whenever required.

(iii) Where the contractor prescribed shall not undertake any work till the permit –to -work is obtained by him from Engineer-in-charge APGENCO rules.

(e) Contractor shall bring inside plant premises only such vehicles having authorized Gate pass issued by APGENCO and shall be paid by driven by only an authorized license holder.

(f) Such vehicles shall be parked only at the allotted parking place and shall not be parked in such a way that may cause inconvenience to other road users or people working around.

(g) Contractor and his employees shall not enter/roam around in places other than their authorized work place.

(5) ACCIDENT REPORTING: It is statutory for the contractor to enter details of accidents occurred, if any at the work place in the APGENCO's Accident Register. The Engineer – in-charge shall be informed telephonically or in person immediately on occurrence of such event.

(a) Whenever asked by Statutory authority, the contractor shall send his employees to depose in any enquiry arising out of any injury/fatality/loss etc., without any reservation.

(b) Incase of any injury, the contractor shall send the injured person to plant Hospital/ dispensary/First Aid Center, where the injured shall be given the first aid treatment and the quantum of permanent disablement/temporary disablement shall be assessed to ensure payment for compensation to be paid, by the contractor to the victim.

(c) In case the subsequent treatment is given at other than APGENCO hospitals, the Contractor shall submit full information about the hospital (S), treatment of injured persons including his address etc., till the injured person is fully fit to return to his normal duty and certified by any Doctor of Govt/ Semi-Govt Hospital.

(6) LIABILITY CLAUSE: If the contractor fails to fulfill any of the condition /safety procedures/ requirements as prescribed here in above relating to safety. APGENCO shall terminate the contract or any other action as may deem fit in the circumstances.

(7) OTHER SAFETY REGULATIONS:

a. The contractor shall ensure proper safety of all the workmen, materials, plant and equipments belonging to him or to APGENCO or to others, working at the site. The contractor shall also be responsible for provision of all safety notices and safety equipment required both by the relevant legislations and the engineer as he may deem necessary.

b. The contractor will notify with in advance to the engineer of his intension to bring to the site any container filled with liquid or gaseous fuel or explosive or petroleum substance or such chemicals which may involve hazards. The Engineer shall have the right to prescribe the conditions, under which such container is to be stored, handled and used during the performance of the works and the contractor shall strictly adhere to and comply with such instructions. The engineer shall have the right at his sole discretion to inspect for which material in the container is required to be used and if in his opinion, its use is not safe, he may forbid its use. No claim due to such prohibition shall be entertained by the owner and the owner shall not entertain any claim of the contractor towards additional safety provisions/conditions to be provided for/constructed as per the engineer's instructions.

Further, any such decision of the engineer shall not, in any way, absolve the contractor of his responsibilities and in case, use of such a container or entry there-off into the site area is forbidding by the engineer, the contractor shall use alternative methods with the approval of the engineer without any cost implication to APGENCO or extension of work schedule.

c. Where it is necessary to provide an/or store petroleum products or petroleum mixtures and explosives, the contractor shall be responsible for carrying out such provision and /or storage in accordance with the rules and regulations laid down in petroleum Act 1914, Explosives Act 1984, and petroleum and carbide of calcium manual published by the Chief Inspector of Explosives of India. All such storage shall have prior approval of the Engineer. In case, any approvals are necessary from the Chief Inspector (Explosives) or any statutory authorities, the Contractor shall be responsible for obtaining the same.

d. All equipments used in construction and erection by contractor shall meet Indian/ International Standards and where such standards do not exist, the contractor shall ensure these to be absolutely safe. All equipment shall be strictly operated and maintained by the contractor in accordance with manufacturer's operation manual and safety instructions and as per Guidelines/ Rules APGENCO in this regard.

e. Periodical Examinations and all tests for all lifting/ hosting equipment & tackles shall be carried out in accordance with the relevant provisions of Factories Act1948, Indian Electricity Act 2003 and associated Laws/Rules in force from time to time. A register of such examinations and tests shall be properly maintained by

the contractor and will be promptly produced as and when desired by engineer or by the person authorized by him.

f. The contractor shall be fully responsible for the safe storage of his and his sub-contractor's radio- active sources in accordance with BARC/DAE Rules and other applicable provisions. All precautionary measures stipulated by BARC/DAE in connection with use, storage and handling of such material will be taken by contractor.

g. The Contractor shall provide suitable safety equipment of prescribed standards to all employees and workmen according to the need, as may be directed by Engineer who will also have right to examine these safety equipments to determine their suitability, reliability, acceptability and adaptability.

h. Where explosives are to be used, the same shall be used under the direct control and supervision of an expert, experience, qualified and competent person strictly in accordance with the ode of practices/Rules framed under Indian Explosives Act Pertaining to handling, storage and use of explosives Act pertaining to handling, storage and use of explosives.

i. The contractor shall provide safe working conditions to all workmen and employees at the site including safe means of access, railings, ladders, scaffoldings etc. The scaffoldings shall be erected under the control and supervision of an experienced and competent person. For erection good and standard quality of material only shall be used by the contractor.

j. The contractor shall not interfere or disturb electric fuses, wiring and other electrical equipment belonging to the owner or other contractors under any circumstances, whatever, unless expressly, permitted in writing by APGENCO to handle such fuses, wiring or electrical equipment.

k. Before the contractor connects any electrical appliances to any plug or socket belonging to the contractor or owner, he shall:
   1. Satisfy the engineer that the appliances is in good working condition;
   2. Inform the engineer of the maximum current rating, voltage and phases of the appliances;
   3. Obtain permission of the detailing the sockets to which the appliances may be connected.

l. The Engineer will not grant permission to connect until he is satisfied that:
   1.The appliances is in good condition and is fitted with a suitable plug;
   2.The appliance is fitted with a suitable cable having two earth conductors one of which shall be an earthed metal sheath surrounding the cores.

m. No electric cable in use by the contractor/owner will be disturbed without prior permission. No weight of any description will be imposed on any cable and no ladder or similar equipment will rest against or attached to it.

n. No repair work shall be carried out on any live equipment. The equipment must be declared safe by the engineer and a permit to work shall be issued by the engineer. The Contractor before any repair work is carried out while working on electric lines/equipments whether live or dead, suitable type and sufficient quantity of tools will have to be provided by contractor to electricians/ workmen/officers.

o. The Contractor shall employee necessary number of qualified, full time electricians/ Electrical Supervisors to maintain his temporary electrical installation.

p. The Contractor shall employing more than 250 workmen whether temporary, casual probationer, regular or permanent or an contract, shall employee at least

one full time officer exclusively as safety officer to supervise safety aspects of the equipments and workmen who will co-ordinate with the project safety officer. In case of work being carried out through sub –contractors, the sub-contractors workmen/employees will also be considered as the contractors employee/workmen for above purpose. The name and address of such safety officer of contractor will promptly informed in writing to engineer with a copy to safety officer in charge before the starts work or immediately after any change of the incumbent is made during currency of the contract.

q. In case any accident occurs during the construction/erection of the associated activities undertaken by the contractor thereby causing any minor or major or fatal injury to his employees due to any reason, whatever it shall be the responsibility of the contractor to promptly inform the same to APGENCO Engineer in prescribed form and also to all the authorities envisages under the applicable laws.

r. The Engineer shall have the right at his sole discretion to stop the work, if in his opinion the work is being carried out in such a way that it may cause accidents and endanger the safety of the persons and /or property, and /or equipments. In such cases, the contractor shall be informed in writing about the nature of hazards and possible injury/accident and he shall comply to remove short-comings promptly. The contractor after stopping the specific work, if felt necessary appeal against the order of stoppage of work to the CE/O&M/Dr.NTTPS with in 3 days of such stoppage of work and decision of project CE/O&M/Dr.NTTPS of this respect shall be conclusive and binding on the contractor.

s. The Contractor shall not be entitled for any damages/compensation for stoppage of work due to safety reasons as provided in para 18 above and the period of such stoppage for work will not be taken as an extension of time for completion of work and will not be the ground for waiver of levy of liquidated damages.

t. The contractor shall follow and comply all APGENCO safety rules, relevant provisions of applicable laws pertaining to the safety of workmen, employees, plant and equipment as may be prescribed from time to time without any demur, protest or contest or reservation. In case of any unconformity between statutory requirement and APGENCO safety rules referred above, the later shall be binding on the contractor unless the statutory provisions are more stringent.

u. If the contractor fails in providing safe working environment as per APGENCO safety rules or continues the work even after being instructed to stop work by the engineer as provided in the para 18 above, the contractor shall promptly pay to APGENCO demand by the owner compensation at the rate of RS.5,000/- per day or part thereof till the instructions are complied with and so certified by the engineer. However, in case of accident taking place causing injury, to any individual, the provisions contained in para.22 shall also apply in addition to compensation mentioned in this para.

v. If the contractor observes all the safety rules ad codes, statutory laws and rules during the currency of contract awarded by the owner and no accident occurs then APGENCO may consider the performance of the contractor and award suitable "ACCIDENT PRE SAFETY MERITORIOUS AWARD" as per scheme as may be announced separately from time to time.

w. Contractor has to issue good quality standard general PPE (Personal Protective Equipment) like safety helmet (Blue colour), Safety shoes and face masks to their workers. Gate passes will be issued after ensuring the issue of General PPE.

x. Contractor's worker has to wear the safety helmet, Safety shoes and face masks, while entering in to the gate.

y. Contractor has to issue the necessary work specific PPE depending upon the nature of works engaged like working at heights, hot works, Electrical works, confined space works and excavation works etc., to their workers.

z. Contractors have to issue 2 pairs of good quality uniform and detergent soaps – 12 Nos. to their workers (AMC continuous works only).

aa. Hired vehicle contractors have to ensure that the vehicles engaged should not posses any names of the individual/firm on the rear glass or on any part of the vehicle. It should posses "HIRED WITH Dr.NTTPS, APGENCO" only.

bb. Hired vehicle contractors have to issue khaki uniform to the Drivers and ensure the wearing of uniform by the drivers.

M. Maruthi Prasad 4/12

Chief Engineer/O&M/Dr.NTTPS

SECTION – I (C)
SPECIAL TERMS AND CONDITIONS (E-Tender)

(1)

(a) APGENCO reserves its right to respond to any e-mail received by it through their website. APGENCO does not warrant the privacy and/ or security of e-mails during internet transmission.

(b) Bidders should have a legally valid digital certificate as per Indian IT Act from the licensed Certifying Authorities on payment of requisitioned charges. Submission of bids by prospective bidders through e-platform will be subjected to terms and conditions notified on www.apeprocurement.gov.in. Bidders are requested to read these terms and conditions carefully and act accordingly.

(c) Bidders should have requisite internet connectivity, preferably broadband.

(d) Any downloading soft copy of tender documents from web site is at the sole risk and responsibility of the bidder. APGENCO will not be responsible for any delay/difficulty/inaccessibility of the downloading facility for any reason whatsoever.

(e) Bidders ought to ensure that they have downloaded the complete set of bid documents and shall be society responsible for the completeness of bid documents and may note that any omission or lack of clarity in the downloaded copy will not be taken as reason for submission of incomplete offer or will not entitle the bidders to claim for changing of scheduled dates of tender process. In such cases, it will be solely responsibility of bidders to get clarifications from the Tender Inviting Authority before submitting tenders on e-platform within stipulated time for submission of bids.

(f) Amendments/Addendum, if any, will also be posted on web site for downloading. APGENCO will not hold any responsibility of Amendments being or not being kept tracked from time-to-time by the bidders.

(g) APGENCO reserves its right, without prejudice to other rights under terms and conditions of NIT and tender documents or other remedy available, to cancel tenders without assigning any reasons, and will not entertain any correspondence in the matter. APGENCO accepts no liability whatsoever and will not be liable for any loss or damage arising directly or indirectly (including special, incidental or consequential loss or damage) from use of e-procurement web site or from cancellation of tenders.

(2) Additional Terms and Conditions as regards e-procurement to be incorporated in tender notice/tender documents invited through e-procurement.

(a) The bidder who is desirous of participating in tenders invited through e-procurement shall submit his Bid on e-procurement platform at www.apeprocurement.gov.in by following the procedure given below. The bidder is required to register on the e-procurement market place www.apeprocurement.gov.in or https://tender.apeprocurement.gov.in.

(b) Registration with e-procurement platform: For registration and online bid submission bidders may contact HELP DESK of service provider whose details are available at www.apeprocurement.gov.in or https://tender.apeprocurement.gov.in.

(c) Digital Certificate authentication: The bidder shall authenticate the bid with his Digital Certificate for submitting the bid electronically on e-procurement platform and the bids not authenticated by digital certificate of the bidder will not be accepted on the e-procurement platform. For obtaining Digital Signature Certificate, bidders may contact:

M/s. Vupadhi Techno Services Pvt. Ltd.
Flat No : 407, 4th Floor,
Sreeram's Sneha Avenue,
Near Aravinda School, Kunchanapalli,
Tadepalli (M), Guntur (Dist) - 522501.
Andhra Pradesh
Phone No: 91 8645-246370 / 71 / 72 / 73 / 74

(OR)

The bidder may contact Registration Authorities of any Certifying Authorities in India. The list of CAs is available by clicking the link https://tender.apeprocurement.gov.in (or) Digital Certificate/Signature.html.

(d) Tender Documents: The prospective bidder intending to respond to e-tender notice is required to download the tender document and read all the terms and conditions mentioned in the tender Document and seek clarification if any from the Tender Inviting Authority. Offline bids shall not be entertained by the Tender Inviting Authority for the tenders published in e-procurement platform. Any condition as regards offline bid submission or offline opening of bids in the conventional tender document shall be treated as not applicable.

(e) The bidders has to keep track of any changes by viewing the Amendment/ Addendum/ Corrigenda issued by the Tender Inviting Authority on time-to-time basis in the E-procurement platform. The Department Inviting tenders will not be responsible for any claims/problems arising out of bidders not keeping track of changes that are informed byway of amendment to NIT.

(f) The bidders shall submit their eligibility and qualification details, Technical bid, financial bid etc., in the online standard formats displayed it e-procurement web site. Payment of EMD should be done by Electronic Payment Gateway accepts all Master and Visa Credit Cards issued by any bank and Direct Debit facility/Net Banking of ICICI Bank, HDFC, Axis Bank to facilitate the transaction. The bidders shall also upload in the e-procurement web site the scanned copies of reference approved letter of PEMD deposited with APGENCO, all the relevant certificates, documents including contractor Registration, experience certificates, **Solvency (Equal to the ECV OR Net worth certificate)**, EPF, GIS /ESI, Goods & Service Tax registration certificates etc., in support of their eligibility criteria/technical bids as asked for in NIT and tender Documents. The bidder shall sign on the statements, documents, certificates, uploaded by him, owning responsibility for their correctness/ authenticity.

(3) <u>Submission of hard copies</u>:

(a) All the bidders shall invariably upload in e-procurement system the scanned copies of Electronic payment EMD details or reference approved letter of PEMD deposited with APGENCO as case may be, Certificates/ Documents in support of eligibility criteria as mentioned in NIT/Tender documents and this will be the primary requirement to consider the bid responsive.

(b) The department will carry out the technical evaluation society based on the uploaded certificates/documents, Electronic payment EMD details or reference approved letter of PEMD deposited with APGENCO in the e-procurement system.

(c) The department will notify the successful bidder for submission of original hard copies of all the uploaded documents, Electronic payment EMD details prior to tenders being processed for release of purchase order/LOI allowing successful bidders 5/10 days time considering actual time requirement from date of opening of bids to submit original hardcopies of all the uploaded documents.

(d) The successful bidder shall invariably furnish the original certificates/ documents of the uploaded scan copies, Electronic payment EMD details or reference approved letter of PEMD deposited with APGENCO as case may be to the Tender Inviting Authority before release of LOI/release of Purchase Order as case may be either personally or through courier or by post. The sending of the same within the stipulated date shall be the responsibility of the successful bidder. The department will not take any responsibility for any delay in receipt/non-receipt of original certificates/documents, EMD details, Certificates/ documents from the successful bidder before the stipulated time. On receipt of documents, the department shall ensure the genuinely of the all other certificates/ documents uploaded by the bidder in e-procurement system in support of the qualification criteria before bids are processed for release of purchase order/sale order/Intending of LOI as case may be.

(e) If any successful bidders fails to submit the original hard copies of uploaded certificates/documents, Electronic payment EMD details or reference letter of PEMD deposited with APGENCO within stipulated time or if any variation is noticed between the uploaded documents and the hardcopies submitted by the bidder, the successful bidder will be suspended from participating in the tenders on e-procurement platform for a period of 3 years. The e-procurement system would

deactivate the user ID of such defaulting bidder based on the trigger/ recommendation by the Tender Inviting Authority in the system. Besides this, the department shall invoke all processes of law including criminal prosecution of such defaulting bidder as an act of extreme deterrence to avoid delays in the tender process for specified work/materials. The bidder is requested to get a confirmed acknowledgement from the Tender Inviting Authority a proof of Hardcopies submission to avoid any discrepancy.

(4) **Payment of Transaction Fee**: It is mandatory for all the participant bidders from 1st January 2006 to electronically pay a Non-refundable Transaction fee to service provider authorized by Govt of AP at 0.03% of estimate value or quoted value (ECV/QV) + GST+ Bank charges for transaction as applicable, with a cap of Rs.10,000/- (Exclusive of GST) for quoted value up to Rs.50.00 Crores and Rs.25,000/- (Exclusive of GST) for quoted value above Rs.50.00 Crores or amount as fixed by Govt.of AP, Currently, as per G.O.Ms.13 dated 07-05-2006, the above mentioned the transaction fee shall be paid through "payment Gateway Service on E-Procurement platform". The Electronic Payment Gateway accepts all Master and Visa Credit Cards issued by any bank and Direct Debit facility/Net Banking of ICICI Bank, HDFC, Axis Bank to facilitate the transaction.

(5) **Corpus Fund**: As specified in the E-tender platform the successful contractor shall pay 0.04% of the ECV (Estimate contract value) before entering into agreement/within 15 days after issue of purchase orders/release of sale order .There shall not be any charges towards e-procurement fund in case of works, goods and services with ECV/QV less than and up to Rs.10.00 Lakhs.

(6) **Bid Submission on e-procurement and unique acknowledgement**: The bidder shall complete all the process and steps required for Bid submission following instructions for bidders responding to e-tenders at website. The system will generate an acknowledgement with a unique bid submission number after completing all the prescribed steps and processes by the bidder after submission of bids on e-procurement platform. The bidders shall be instructed in NIT/Tender documents to note that the bids for which and acknowledgement is not generated by the e-procurement system are treated as invalid of not saved in the system. Such invalid bids are not made available to the Tender Inviting Authority for processing the bids. The APGENCO or service provider is not responsible for incomplete bid submission by bidders.

M. Ravitte Prasad 4/3/26

Chief Engineer/O&M/Dr.NTTPS

(TO BE STAMPED IN ACCORDANCE WITH INDIAN STAMP ACT)

PROFORMA OF BANK GUARANTEE FOR THE SECURITY DEPOSIT (SD)

Bank Guarantee No.:

Date:

Valid Upto:

Claim Period:

In consideration of the Andhra Pradesh Power Generation Corporation Limited (An enterprise of the Government of Andhra Pradesh) (hereafter referred to as 'APGENCO' which expression shall unless repugnant to the context or meaning thereof, include its successors and permitted assigns) incorporated under the Indian Companies Act, 1956 read with subsequent amendments and Act(s) and having its registered office at Vidyut Soudha, Gunadala, Vijayawada, Andhra Pradesh, India-520004 having agreed to exempt (Name of the Contractor/Supplier4/Vendor) having its registered office at _____ (hereafter called the said Contractor/Supplier/Vendor) from the demand/payment of Security Deposit payable under the terms and conditions of the Contract/Purchase Order/Work Order No. , Dated made between the APGENCO and (Name of the Contractor/Supplier/Vendor) for supply/commissioning/rendering services/execution of work _____ (herein after called the said 'Contract/Agreement') , on production of a Bank Guarantee for Rs._____ (Rupees _____ only).

At the request of _____) Tenderor/Contractor) We,.....(hereinafter referred to as the "Bank"), having Registered/Head office at ..... and a branch at ..... being the Guarantor under this Guarantee, do hereby irrevocably and unconditionally undertake to forthwith and immediately pay to the APGENCO without any delay or demur, merely on your first demand any sum or sums up to a maximum amount but not exceeding Rs.----------(Rupees----------) in the event of any breach by the said Tenderor/Contractor of any of the terms and conditions contained in the said Contract/Purchase Order/Work Order No.------
Dated ----------.

We, _____ (indicate the name of the Bank), do hereby undertake to forthwith and immediately pay the amounts due and payable under this guarantee without any demur, merely on a demand from APGENCO. Any such demand made on the bank, shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs._____(Rupees_____ only).

We undertake to pay unconditionally to the APGENCO any money so demanded notwithstanding any dispute(s) raised by the Contractor/Supplier/Vendor) in any suit, or proceedings pending before any Court or Tribunal or Arbitration or any other Authority relating thereto our liability under this present being is absolute and unequivocal. The payment under this guarantee would not wait till the disputes have been decided by any Court or Tribunal or in the Arbitration proceeding or by any other Authority.

The payment so made by us under this guarantee shall be a valid discharge of our liability for payment hereunder and the Contractor/Supplier/Vendor shall have no claim against us for making such payment.

We, (indicate the name of the Bank) further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract/Agreement and that it shall continue to be enforceable till all the dues of the APGENCO under by virtue of the said Contract/Agreement have been fully paid and its claims satisfied or discharged or till the concerned authority of APGENCO certifies that the terms and conditions of the said Contract/Agreement have been fully and properly carried out by the said Contractor/Supplier/Vendor and accordingly discharge the guarantee, subject to however that the APGENCO shall have no right under this bank guarantee after expiry of _____(period) from the date of its execution. BG is to be valid till_____, Unless a demand or claim under this guarantee is made on us in writing on or before the _____, we (indicate the name of the Bank) shall be discharged from all the liability under this guarantee thereafter.

We, (Indicate the name of the Bank) further agree with the APGENCO that the APGENCO shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Contract/Agreement or to extend time of BG by the said Contractor/Supplier/Vendor from time to time or to postpone for any time or from time to time.

This guarantee will not be discharged due to the change in the constitution of the Bank or the Contractor/Supplier/Vendor.

We, (indicate the name of the Bank) lastly undertakes not to revoke this guarantee during its currency except with the previous consent of the APGENCO in writing. Furthermore, we (indicate the name of the Bank) accept that

1. This Bank Guarantee is unconditional and absolute
2. Claim against this Bank Guarantee shall be honored without any delay or demur; and
3. This Bank guarantee covers all the losses, claims, damaged and costs suffered by the APGENCO against the said Contract/Agreement

Notwithstanding anything to the contrary contained hereinabove:

a) The liability of the Bank under this Guarantee shall not exceed.....
b) This Guarantee shall be valid up to Dt._____
c) Unless the Bank is served a written claim or demand on or before Dt._____ all rights under this guarantee shall be forfeited and the Bank shall be relieved and discharged from all liabilities under this guarantee irrespective of whether or not the original bank guarantee is returned to the Bank.

We, (indicate the name of the Bank), have power to issue this Guarantee under law and the undersigned as a duly authorized person has full powers to sign this Guarantee on behalf of the Bank.

In witness where of signed this Guarantee on this _____Day_____Year___
for _____ Bank at

(Signature(s) of Authorized Personnel of the Bank with Seal)

Designation:
Address:

ANNEXURE-IV

UNDERTAKING

(Name of the contractor), confirms that ours is an independent Organization by itself, as such undertakes independently the full responsibility to execute the assigned ' (Name of the work)' to the satisfaction of APGENCO site authorities as per the detailed works awarded and as stipulated in the contract agreement/Purchase Order No. _____ with the scale of labour specified, by meeting the statutory obligations as in consideration thereof, APGENCO has agreed to make payment as per the payment terms of the contract agreement/Purchase Order thereto. The details of work identified by APGENCO for award to (Name of the contractor), are given in schedule of works (Scope of work). Further it is specifically agreed that (Name of the contractor), would not stake claim for absorption of the labourer engaged by them for carrying out the works awarded, and the (Name of the contractor), hereby assures that consent from each worker deployed by them for the works will be obtained before commencement of work, to the effect that he would not stake any claim for absorption, and will be furnished to the APGENCO. (Name of the contractor), accepts the right of APGENCO for engaging any other agency or resorting to any other suitable means to carry out these jobs in the event of necessity; or as the case may be if the workmen of (Name of the contractor), or its contractors refuses to work, goes on strike against APGENCO's interest; or for any other reason which is likely to lead to loss of productivity.

Date: **Authorized Signatories (With office seal)**

Witnesses (Name, signature & Address):

1.

2.